

CHAPTER 46*Nuclear Installations (Licensing and Insurance) Act, 1959***ARRANGEMENT OF SECTIONS****Section**

1. Licensing of sites for nuclear installations.
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SCHEDULE—Inquiries into occurrences in connection with licensed sites.

An Act to make provision for the regulation of certain installations capable of emitting ionising radiations and with respect to the incidence of, and the provision of cover for, liability in respect of any such radiations emitted from, or in connection with the use of, any such installation; and for purposes connected with the matters aforesaid. [9th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Licensing
of sites
for nuclear
installations.

1.—(1) Without prejudice to the requirements of any other Act, no person other than the Authority shall use any site for the purpose of installing or operating—

- (a) any plant designed or adapted for the production of atomic energy by a fission process in which a controlled chain reaction can be maintained without an additional source of neutrons ; or
- (b) any other installation of such class or description as may be prescribed, being an installation designed or adapted for—
 - (i) the production or use of atomic energy ; or

(ii) the carrying out of any process which is preparatory or ancillary to the production or use of atomic energy and which involves or is capable of causing the emission of ionising radiations ; or

(iii) the storage, processing or disposal of nuclear fuel or of bulk quantities of other radioactive matter, being matter which has been produced or irradiated in the course of the production or use of nuclear fuel,

unless a licence so to do (in this Act referred to as a "nuclear site licence") has been granted in respect of that site by the Minister and is for the time being in force.

(2) Notwithstanding that a nuclear site licence is for the time being in force or is not for the time being required in respect thereof, no person other than the Authority shall use any site—

(a) for any treatment of irradiated matter which involves the extraction therefrom of plutonium or uranium ; or

(b) for any treatment of uranium such as to increase the proportion of the isotope 235 contained therein,

except under, and in accordance with the terms of, a permit in writing for such a use of the site for purposes of research or development granted by the Authority or a government department ; and any fissile material produced under such a permit shall be disposed of only in such manner as may be approved by the authority by whom the permit was granted.

(3) Two or more installations in the vicinity of one another may, if the Minister thinks fit, be treated for the purposes of the grant of a nuclear site licence as being on the same site.

(4) A nuclear site licence shall not be granted to any person other than a body corporate and shall not be transferable, and the Minister by instrument in writing—

(a) shall on granting the licence, and may from time to time thereafter, attach to the licence such conditions as may appear to the Minister to be necessary or desirable in the interests of safety, whether in normal circumstances or in the event of any accident or other emergency on the site, which conditions may in particular include provision—

(i) for securing the maintenance of an efficient system for detecting and recording the presence and intensity of any ionising radiations from time to time emitted from anything on the site or from anything discharged on or from the site ;

(ii) with respect to the design, siting, construction, installation, operation, modification and maintenance of any plant or other installation on, or to be installed on, the site ;

(iii) with respect to preparations for dealing with, and measures to be taken on the happening of, any accident or other emergency on the site ;

(iv) subject to the next following subsection, with respect to the discharge of any substance on or from the site ;

(b) may at any time attach to the licence such conditions as the Minister may think fit with respect to the handling, treatment and disposal of any nuclear fuel which becomes irradiated in the course of its use at the site ; and the Minister may at any time by a further instrument in writing vary or revoke any condition for the time being attached to the licence.

(5) Subsection (4) of section five of the Atomic Energy Authority Act, 1954 (which makes temporary provision with respect to the discharge of waste on or from premises occupied by the Authority) shall apply to any licensed site as it applies to such premises as aforesaid ; and accordingly references in the penultimate paragraph of the said subsection (4) to the Authority and to their duty under subsection (3) of the said section five shall be construed as including respectively references to a licensee and to his duty under subsection (1) of section four of this Act.

(6) At all times while a nuclear site licence remains in force, the licensee shall cause copies of—

(a) any conditions for the time being in force under subsection (4) of this section ; and

(b) any conditions or requirements subject to compliance with which any authorisation has been given in respect of the site under the provision applied by subsection (5) of this section,

to be kept posted upon the site, and in particular on any part thereof which an inspector may direct, in such characters and in such positions as to be conveniently read by persons having duties upon the site which are or may be affected by those conditions or requirements.

(7) Any person who contravenes subsection (1), subsection (2) or subsection (6) of this section and, in the event of—

(a) any contravention of any condition attached to a nuclear site licence under subsection (4) of this section ; or

(b) any contravention in connection with a licensed site of the provision applied by subsection (5) of this section,

the licensee and any person having duties upon the site in question by whom that contravention was committed, shall be guilty of an offence and be liable—

- (i) on summary conviction, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both ;
- (ii) on conviction on indictment, to a fine not exceeding five hundred pounds, or to imprisonment for a term not exceeding five years, or to both ;

and any person who without reasonable cause pulls down, injures or defaces any document posted in pursuance of subsection (6) of this section shall be guilty of an offence and be liable on summary conviction to a fine not exceeding five pounds.

2.—(1) A nuclear site licence may at any time be revoked by the Minister or surrendered by the licensee. Revocation
and surrender
of licences.

(2) Where a nuclear site licence has been revoked or surrendered, the licensee shall, if so required by the Minister, deliver up or account for the licence to such person as the Minister may direct, and shall during the remainder of the period of his responsibility cause to be kept posted upon the site such notices indicating the limits thereof in such positions as may be directed by an inspector ; and the Minister may on the revocation or surrender and from time to time thereafter until the expiration of the said period give to the licensee such other directions as the Minister may think fit for preventing or giving warning of any risk of hurt to any person or damage to any property by ionising radiations from anything remaining on the site.

(3) In this Act the expression “ period of responsibility ” in relation to the licensee under a nuclear site licence means, as respects the site in question or any part thereof, the period beginning with the grant of the licence and ending with whichever of the following dates is the earlier, that is to say—

- (a) the date when the Minister gives notice in writing to the licensee that in the opinion of the Minister there has ceased to be any danger from ionising radiations from anything on the site or, as the case may be, on that part thereof ;
- (b) the date when a nuclear site licence in respect of the site or, as the case may be, that part thereof is granted to some other person.

(4) If the licensee contravenes any direction for the time being in force under subsection (2) of this section, he shall be guilty of an offence and be liable—

(a) on summary conviction—

- (i) in the case of a first offence under this subsection, to a fine not exceeding fifty pounds ;

(ii) in the case of a second or subsequent offence under this subsection, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both ;

(b) on conviction on indictment, to a fine not exceeding two hundred pounds, or to imprisonment for a term not exceeding one year, or to both ;

and any person who without reasonable cause pulls down, injures or defaces any notice posted in pursuance of subsection (2) of this section shall be guilty of an offence and be liable on summary conviction to a fine not exceeding five pounds.

Supplementary
provisions as to
licensing of
sites.

3.—(1) Where in the case of an application for a nuclear site licence in respect of any site received by the Minister after the commencement of this Act it appears to the Minister appropriate so to do, he may direct the applicant to serve on such bodies of any of the following descriptions as may be specified in the direction, that is to say—

(a) any local authority ;

(b) any river board, any local fisheries committee and any statutory water undertakers within the meaning of the Water Acts, 1945 and 1948 ;

(c) any river purification board within the meaning of the Rivers (Prevention of Pollution) (Scotland) Act, 1951, any district board constituted under the Salmon Fisheries (Scotland) Acts, 1828 to 1868, the board of commissioners appointed under the Tweed Fisheries Act, 1857, and any local water authority within the meaning of the Water (Scotland) Acts, 1946 and 1949 ; and

(d) any other body which is a public or local authority,

notice that the application has been made, giving such particulars as may be so specified with respect to the use proposed to be made of the site under the licence, and stating that representations with respect thereto may be made to the Minister by the body upon whom the notice is served at any time within three months of the date of service ; and where such a direction has been given, the Minister shall not grant the licence unless he is satisfied that three months have elapsed since the service of the last of the notices required thereby nor until after he has considered any representations made in accordance with any of those notices :

Provided that this subsection shall not apply in relation to an application in respect of a site for a generating station made by an electricity board within the meaning of the Electricity Acts, 1947 and 1957, or of the Electricity (Scotland) Acts, 1943 to

1957, or by any authorised undertakers within the meaning of the Electricity (Supply) Acts (Northern Ireland), 1882 to 1959.

(2) While a nuclear site licence remains in force in respect of any site, the Minister shall consider any representations by any organisation representing persons having duties upon the site which may from time to time be made to him with a view to the exercise by him in relation to the site of any of his powers under subsection (4) of section one of this Act.

(3) The Minister shall maintain a list showing every site in respect of which a nuclear site licence has been granted by him and including a map or maps showing the position and limits of each such site, and make arrangements for that list or a copy thereof to be available for inspection by the public; and he shall cause notice of those arrangements to be made public in such manner as may appear to him appropriate:

Provided that the said list shall not be required to show any site or part of a site in the case of which no nuclear site licence is for the time being in force and thirty years have elapsed since the expiration of the last licensee's period of responsibility.

4.—(1) Where a nuclear site licence has been granted in *Licensee's* respect of any site, it shall be the duty of the licensee to secure liability that no ionising radiations—

- (a) emitted during the period of the licensee's responsibility from anything caused or suffered by the licensee to be on the site or from any waste discharged (in whatever form) on or from the site; or
- (b) subject to subsection (3) of this section, emitted from any irradiated nuclear fuel in the course of carriage on behalf of the licensee within, or between places within, the United Kingdom, being fuel which has become irradiated in the course of its use at the site under that licence,

cause any hurt to any person or any damage to any property, whether that person or property is on the site or elsewhere:

Provided that the licensee shall not incur any liability by virtue of this subsection in respect of any ionising radiations to the extent that their emission, or the causing of any hurt to any person or any damage to any property by their emission, is attributable to hostile action in the course of any armed conflict, including any armed conflict within the United Kingdom.

(2) Subject to the next following subsection, no person other than the licensee shall be under any liability in respect of any hurt to any person or any damage to any property caused by any ionising radiations to which subsection (1) of this section applies.

(3) At any time while any irradiated nuclear fuel in the course of carriage between places within the United Kingdom is in a ship or aircraft outside the limits of the territorial waters of the United Kingdom, paragraph (b) of subsection (1) of this section shall apply only if the ship or aircraft is registered in the United Kingdom, one of the Channel Islands, the Isle of Man or a colony; and, without prejudice to any agreement for indemnity by the licensee, nothing in the said paragraph (b) or in subsection (2) of this section shall affect the operation of the Carriage of Goods by Sea Act, 1924, or the Carriage by Air Act, 1932.

(4) Notwithstanding anything in any other enactment, an action to establish a claim by virtue of subsection (1) of this section may be commenced at any time before, but may not be commenced at any time after, the expiration of thirty years from the relevant date, that is to say, the date of the occurrence on, or in connection with the use of, the site in question which gave rise to the claim or, where that occurrence was a continuing one, or was one of a succession of occurrences all attributable to a particular happening on that site or to the carrying out from time to time on that site of a particular operation, the date of the last event in the course of that occurrence or succession of occurrences to which the claim relates:

Provided that, where any such claim is duly established but is not one for the full satisfaction of which funds are required to be available by subsection (1) of section five of this Act or is made more than ten years after the relevant date aforesaid, the licensee shall not be required to make any payment in satisfaction of the claim unless or until Parliament has made provision such as to secure that the amount required to satisfy the claim, or, if the claim is made within ten years of the relevant date aforesaid, so much of that amount as is not payable out of the said funds, will, if the licensee so requires, be reimbursed to the licensee by such means as Parliament may determine; and after the making of such provision no payment by way of settlement of the claim by agreement between the licensee and the claimant shall be made unless the Minister has approved the settlement.

(5) The liability of a licensee by virtue of subsection (1) of this section shall be in substitution for any liability of the licensee apart from that subsection in respect of any ionising radiations to which that subsection applies; and, in the case of a claim against a licensee by virtue of paragraph (b) of that subsection, the claim shall not give rise to any lien or other right in respect of any ship or aircraft and the following provisions of the Administration of Justice Act, 1956 (which relate to the bringing of actions in rem against ships or aircraft in England and

Wales, Scotland and Northern Ireland respectively), that is to say—

- (a) subsections (3) and (4) of section three ;
- (b) section forty-seven ; and
- (c) sub-paragraphs (3) and (4) of paragraph 3 of Part I of the First Schedule,

and section five hundred and three of the Merchant Shipping Act, 1894 (which relates to the limitation of the liability of shipowners), shall not apply to that claim ; and this subsection shall have effect notwithstanding that by reason of the proviso to subsection (4) of this section the licensee is not for the time being required to make any payment in satisfaction of the claim.

5.—(1) Subject to the next following subsection, where a nuclear site licence has been granted in respect of any site, the licensee shall make such provision, either by insurance or by some other means, as the Minister may with the consent of the Treasury approve for sufficient funds to be available at all times to ensure that any claims in connection with the use of the site which have been or may be duly established against the licensee in respect of any hurt to any person or any damage to any property caused by ionising radiations to which subsection (1) of section four of this Act applies, whether made by virtue of the said subsection (1) or otherwise, including any claim under an agreement for indemnity by the licensee, are satisfied up to an aggregate amount of five million pounds in respect of each severally of the following periods, that is to say—

- (a) the current cover period, if any ;
- (b) any cover period which ended less than ten years before the time in question ;
- (c) if a claim in respect of any earlier cover period made within ten years of the relevant date for the purposes of subsection (4) of the said section four remains to be disposed of, that earlier cover period ;

and for the purposes of this section the cover period in respect of which any claim is to be treated as being made shall be that in which the relevant date aforesaid fell.

In this section, the expression “cover period” means the period of the licensee’s responsibility or, if a direction has been given in respect of the site under subsection (6) of section six of this Act, any of the following periods, that is to say—

- (i) the period beginning with the grant of the nuclear site licence and ending with the date specified in the first such direction ;
- (ii) the period beginning with the date specified in any such direction and ending with the date specified in the next such direction, if any ;

- (iii) the period beginning with the date specified in the last such direction and ending with the ending of the period of the licensee's responsibility ;

and for the purposes of this definition the period of the licensee's responsibility shall be deemed to include any time after the expiration of that period during which there continues any carriage on behalf of the licensee within, or between places within, the United Kingdom of nuclear fuel irradiated in the course of its use at the site under his licence.

(2) Where in the case of any licensed site the provision required by subsection (1) of this section is to be made otherwise than by insurance and, apart from this subsection, provision would also fall to be so made by the same person in respect of two or more other sites, the requirements of that subsection shall be deemed to be satisfied in respect of each of those sites if funds are available to meet such claims as are mentioned in that subsection in respect of all the sites collectively, and those funds would for the time being be sufficient to satisfy the requirements of that subsection in respect of those two of the sites in respect of which those requirements are highest :

Provided that the Minister may in any particular case at any time direct either that this subsection shall not apply or that the funds available as aforesaid shall be of such amount higher than that provided for by the foregoing provisions of this subsection, but lower than that necessary to satisfy the requirements of the said subsection (1) in respect of all the sites severally, as may be required by the direction.

(3) In the case of each licensed site, the licensee—

(a) shall give notice in writing to the Minister forthwith—

(i) upon its appearing to the licensee that the aggregate amount of any claims such as are mentioned in subsection (1) of this section made in respect of any cover period falling within the period of the licensee's responsibility has reached three million pounds ; and

(ii) of the receipt by the licensee of any claim more than ten years after the relevant date for the purposes of subsection (4) of section four of this Act ; and

(b) if any cover period falling within the period of the licensee's responsibility has ended, shall not later than the thirty-first day of January in each year send to the Minister in writing a statement showing the date when that cover period ended and the following particulars of any claims in respect of that cover period as at the beginning and end respectively of the last preceding calendar year, that is to say—

(i) the aggregate number of claims received ;

- (ii) the aggregate number of claims established ;
and
- (iii) the aggregate number and aggregate amount
of claims satisfied ;

and the Minister shall as soon as may be lay before each House of Parliament a copy of any notice received by him under paragraph (a) of this subsection and a report (in such form as, having regard to the proviso to subsection (4) of section four of this Act, he may consider appropriate) with respect to any statements received by him under paragraph (b) of this subsection.

(4) Subject to subsection (2) of this section, if any person uses a licensed site for the operation of any plant or other installation such as is mentioned in subsection (1) of section one of this Act at a time when the provisions of subsection (1) of this section are not complied with, the licensee shall be guilty of an offence and be liable—

- (a) on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both ;
- (b) on conviction on indictment, to a fine not exceeding five hundred pounds, or to imprisonment for a term not exceeding two years, or to both.

6.—(1) The provisions of this section shall have effect on the happening on, or in connection with the use of, any licensed site of an occurrence of any such class or description as may be prescribed.

**Dangerous
occurrences
in connection
with licensed
sites.**

(2) The licensee shall cause the occurrence to be reported forthwith in the prescribed manner to the Minister and to such other persons, if any, as may be prescribed in relation to occurrences of that class or description, and if the occurrence is not so reported the licensee shall be guilty of an offence and be liable on summary conviction—

- (a) in the case of a first offence under this subsection, to a fine not exceeding fifty pounds ;
- (b) in the case of a second or subsequent offence under this subsection, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both.

(3) The Minister may at any time direct an inspector to make a special report with respect to the occurrence, and the Minister may cause any such report, or so much thereof as it is not in his opinion inconsistent with the interests of national security to disclose, to be made public at such time and in such manner as he thinks fit.

(4) The Minister may, where he thinks it expedient so to do, direct an inquiry to be held in accordance with the provisions of the Schedule to this Act into the occurrence and its causes, circumstances and effects; and any such inquiry shall be held in public except where or to the extent that it appears to the Minister expedient in the interests of national security to direct otherwise.

(5) Without prejudice to any right of any person to claim against the licensee by virtue of subsection (1) of section four of this Act, the Minister may by order make provision for enabling such particulars of any person shown to have been within such area during such period (being the period during which the occurrence took place) as may be specified in the order to be registered by or on behalf of that person in such manner as may be so specified, and any such registration in respect of any person shall be sufficient evidence of his presence within that area during that period unless the contrary is proved; and any such order shall be made by statutory instrument and be laid before Parliament after being made.

(6) Where, by reason of the gravity of the occurrence or having regard to any previous occurrences on, or in connection with the use of, the site which have resulted or may result in claims such as are mentioned in subsection (1) of section five of this Act, the Minister thinks it proper so to do, he shall by notice in writing to the licensee direct that a new cover period for the purposes of the said subsection (1) shall begin in respect of that site on such date not earlier than two months after the date of the service of the notice as may be specified therein.

(7) Where, in the case of an occurrence in Scotland which causes the death of any person, the Minister directs an inquiry to be held into the occurrence under subsection (4) of this section, no inquiry with regard to that death shall, unless the Lord Advocate otherwise directs, be held in pursuance of the Fatal Accidents Inquiry (Scotland) Act, 1895.

Inspectors.

7.—(1) The Minister may appoint as inspectors to assist him in the execution of this Act such number of persons appearing to him to be qualified for the purpose as he may from time to time consider necessary or expedient, and may make to or in respect of any person so appointed such payments by way of remuneration, allowances or other payments as the Minister may with the approval of the Treasury determine.

(2) Any such inspector may, for the purposes of the execution of this Act, and subject to production, if so requested, of written evidence of his authority—

(a) at all reasonable times during the period of the licensee's responsibility enter upon any premises comprised in

any licensed site with such equipment, and carry out such tests and inspections, as he may consider necessary or expedient ;

- (b) require the licensee or any person with duties on or in connection with any licensed site to provide him with such information, or to permit him to inspect such documents, relating to the use of the site as the inspector may specify :

Provided that before carrying out any test in pursuance of his powers under paragraph (a) of this subsection the inspector shall consult with such persons having duties upon the site as may appear to him appropriate in order to secure that the carrying out of the test does not create any danger.

(3) Any person who obstructs an inspector in the exercise of his powers under paragraph (a) of the last foregoing subsection or who refuses or without reasonable excuse fails to provide any information or to permit any inspection reasonably required by the inspector under paragraph (b) of that subsection shall be guilty of an offence and be liable on summary conviction to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or to both.

(4) Any person who, without the authority of the Minister, discloses any information obtained in the exercise of powers under this Act shall be guilty of an offence and be liable—

- (a) on summary conviction to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or to both ;
- (b) on conviction on indictment, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding two years, or to both.

8.—(1) Where a body corporate is guilty of an offence under any of the provisions of this Act and that offence is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly ; and where the body corporate was guilty of the offence in the capacity of licensee under a nuclear site licence, he shall be so liable as if he, as well as the body corporate, were the licensee. Offences—
general.

In this subsection, the expression “director”, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

(2) Where a body corporate is convicted on indictment of an offence under section one, two or five of this Act, so much of that section as limits the amount of the fine which may be imposed shall not apply, and the body corporate shall be liable to a fine of such amount as the court thinks just.

(3) Proceedings in respect of any offence under this Act shall not be instituted in England or Wales except by the Minister or by or with the consent of the Director of Public Prosecutions.

Liability of
government
departments
and Atomic
Energy
Authority
in respect
of nuclear
installations.

9.—(1) If a government department uses any site for the purpose of operating any plant or other installation such as is mentioned in subsection (1) of section one of this Act, then section four of this Act, except the proviso to subsection (1) and the proviso to subsection (4) thereof, shall apply in like manner as if the Minister in charge of that department were the licensee under a nuclear site licence in respect of that site and as if any reference to the period of the licensee's responsibility were a reference to any period during which the department occupies the site; but save as aforesaid nothing in the foregoing provisions of this Act shall apply to that site.

(2) Without prejudice to subsection (3) of section five of the Atomic Energy Authority Act, 1954, but subject to the next following subsection, it shall be the duty of the Authority to secure that no ionising radiations emitted from irradiated nuclear fuel in the course of carriage on behalf of the Authority within, or between places within, the United Kingdom cause any hurt to any person or any damage to any property.

(3) Subsections (2) to (5) of section four of this Act shall apply to the Authority with the following modifications, that is to say—

- (a) any reference to a licensee shall be construed as a reference to the Authority;
- (b) any reference to subsection (1) of the said section four shall be construed as a reference to subsection (3) of section five of the said Act of 1954 and subsection (2) of this section;
- (c) any reference to paragraph (b) of the said subsection (1) shall be construed as a reference to subsection (2) of this section;
- (d) in subsection (4) of the said section four, the proviso shall be omitted, and for the words "the occurrence on, or in connection with the use of, the site in question which gave rise to the claim" there shall be substituted the words "the occurrence which gave rise to the claim,

being an occurrence on, or in connection with the use of, premises occupied by the Authority or an occurrence (whether or not in connection with the use of such premises) in the course of any carriage of irradiated nuclear fuel on behalf of the Authority within, or between places within, the United Kingdom."

10.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say— Interpretation.

"atomic energy" has the meaning assigned by the Atomic Energy Act, 1946 ;

"the Authority" means the United Kingdom Atomic Energy Authority ;

"contravention", in relation to any enactment or to any condition imposed or direction given thereunder, includes a failure to comply with that enactment, condition or direction, and cognate expressions shall be construed accordingly ;

"inspector" means an inspector appointed under section seven of this Act ;

"licensed site" means a site in respect of which a nuclear site licence has been granted, whether or not that licence remains in force ;

"licensee" means a person to whom a nuclear site licence has been granted, whether or not that licence remains in force ;

"Minister" means, except in section nine of this Act, and subject to subsection (2) of this section—

(a) in the application of this Act to England and Wales, the Minister of Power ;

(b) in the application of this Act to Scotland, the Secretary of State,

and in the said section nine includes the Admiralty, the Army Council and the Air Council ;

"nuclear site licence" has the meaning assigned by subsection (1) of section one of this Act ;

"period of responsibility" in relation to a licensee has the meaning assigned by subsection (3) of section two of this Act ;

"plant" includes any machinery, equipment or appliance, whether affixed to land or not, but does not include anything comprised or to be comprised in any means of transport, whether by land, water or air ;

“prescribed” means prescribed by regulations made by the Minister, which shall be made by statutory instrument and be subject to annulment in pursuance of a resolution of either House of Parliament.

(2) In the application of this Act to Great Britain, the reference to the Minister in the definition of “prescribed” contained in the foregoing subsection shall be construed as a reference to the Minister of Power and the Secretary of State acting jointly.

(3) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

Expenses.

11. Any expenses incurred by any government department which are attributable to the provisions of this Act shall be defrayed out of moneys provided by Parliament.

**Northern
Ireland.**

12.—(1) This Act shall extend to Northern Ireland subject to the provisions of this section.

(2) In its application to Northern Ireland, this Act shall have effect subject to the following modifications, that is to say—

(a) except in section nine, any reference to the Minister shall be construed as a reference to the Minister of Commerce for Northern Ireland ;

(b) any reference to the Treasury shall be construed as a reference to the Ministry of Finance for Northern Ireland ;

(c) subject to the next following paragraph, and except in section eleven of this Act, any reference to Parliament shall be construed as a reference to the Parliament of Northern Ireland ;

(d) any provision of this Act requiring regulations or orders to be made by statutory instrument shall be construed as a provision that those regulations or orders shall be statutory rules within the meaning of the Rules Publication Act (Northern Ireland), 1925, or any enactment of the Parliament of Northern Ireland replacing that Act, and so much of the definition of “prescribed” contained in subsection (1) of section ten of this Act as provides that a statutory instrument containing regulations shall be subject to annulment in pursuance of a resolution of either house of Parliament shall be construed as a provision that those regulations shall be subject to negative resolution within the meaning of subsection (6) of section forty-one of the Interpretation Act (Northern Ireland), 1954 ;

- (e) any reference to an enactment of the Parliament of the United Kingdom shall be construed as a reference to that enactment as it applies in Northern Ireland ;
- (f) except in section eleven of this Act, any reference to a government department shall be construed as including a reference to a department of the Government of Northern Ireland ;
- (g) for paragraphs (b) and (c) of subsection (1) of section three of this Act there shall be substituted the following, that is to say—

“ (b) any board of conservators for a fishery district constituted under the Fisheries Acts (Northern Ireland), 1842 to 1954, and any statutory water undertaking within the meaning of the Water Supplies and Sewerage Act (Northern Ireland), 1945 ”;

- (h) in the Schedule, any reference to a master of the Supreme Court or to the High Court shall be construed respectively as a reference to the taxing master of the Supreme Court of Northern Ireland or to a judge of the High Court of Justice in Northern Ireland.

(3) Proceedings in respect of any offence under this Act shall not be instituted in Northern Ireland except by the Minister or by or with the consent of the Attorney General for Northern Ireland.

(4) Nothing in this Act shall authorise any department of the Government of Northern Ireland to incur any expenses attributable to the provisions of this Act until provision has been made by the Parliament of Northern Ireland for those expenses to be defrayed out of moneys provided by that Parliament.

(5) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to have been passed before the appointed day within the meaning of that section.

13. Her Majesty may by Order in Council direct that any of the provisions of this Act specified in the Order shall extend, with such exceptions, adaptations and modifications as may be so specified, to any of the Channel Islands or to the Isle of Man.

14.—(1) This Act may be cited as the Nuclear Installations (Licensing and Insurance) Act, 1959.

Short title
and com-
mencement

(2) This Act shall come into force on such date as Her Majesty may by Order in Council appoint.

Section 6.

SCHEDULE

INQUIRIES INTO OCCURRENCES IN CONNECTION WITH LICENSED SITES

1. An inquiry in pursuance of a direction under subsection (4) of section six of this Act with respect to any occurrence shall be held by a competent person appointed by the Minister, and that person may conduct the inquiry either alone or with the assistance of an assessor or assessors so appointed.

2. The Minister may pay to the person appointed to hold the inquiry and to any assessor appointed to assist him such remuneration and allowances as the Minister may, with the approval of the Treasury, determine.

3. The person appointed to hold the inquiry (hereafter in this Schedule referred to as "the court") shall hold the inquiry in such manner and under such conditions as the court thinks most effectual for ascertaining the causes, circumstances and effects of the occurrence and for enabling the court to make the report hereafter in this Schedule mentioned.

4. The court shall, for the purposes of the inquiry, have power—

- (a) to enter and inspect any place or building the entry or inspection whereof appears to the court requisite for the said purposes ;
- (b) by summons signed by the court to require any person to attend, at such time and place as is specified in the summons, to give evidence or produce any documents in his custody or under his control which the court considers it necessary for the purposes of the inquiry to examine ;
- (c) to require a person appearing at the inquiry to furnish to any other person appearing thereat, on payment of such fee, if any, as the court thinks fit, a copy of any document offered, or proposed to be offered, in evidence by the first-mentioned person ;
- (d) to take evidence on oath, and for that purpose to administer oaths, or, instead of administering an oath, to require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined ;
- (e) to adjourn the inquiry from time to time ; and
- (f) subject to the foregoing sub-paragraphs, to regulate the procedure of the court.

5. A person attending as a witness before the court shall be entitled to be paid by the Minister such expenses as would be allowed to a witness attending on subpoena before a court of record, and any dispute as to the amount to be so allowed shall be referred by the court to a master of the Supreme Court who, on request signed by the court, shall ascertain and certify the proper amount of the expenses.

6. The court shall make a report to the Minister stating the causes, circumstances and effects of the occurrence, adding any observations which the court thinks it right to make, and the Minister shall cause copies of the report, or so much thereof as it is not in his opinion inconsistent with the interests of national security to disclose, to be laid before Parliament.

7. If any person—

- (a) without reasonable excuse (proof whereof shall lie on him), and after having the expenses (if any) to which he is entitled tendered to him, fails to comply with any summons or requisition of the court; or
- (b) does any other thing which would, if the court had been a court of law having power to commit for contempt, have been contempt of that court,

the court may, by instrument signed by the court, certify the offence of that person to the High Court or, in Scotland, the Court of Session, and the High Court or Court of Session may thereupon inquire into the alleged offence and after hearing any witnesses who may be produced against or on behalf of the person charged with the offence, and after hearing any statement that may be offered in defence, punish or take steps for the punishment of that person in like manner as if he had been guilty of contempt of the High Court or, as the case may be, the Court of Session.

8. In the application of this Schedule to Scotland, for references to a master of the Supreme Court, to a witness attending on subpoena before a court of record, and to a summons there shall be respectively substituted references to the Auditor of the Court of Session, to a witness attending on citation the High Court of Justiciary, and to an order.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Tweed Fisheries Act, 1857	20 & 21 Vict. c. cxlviii.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Fatal Accidents Inquiry (Scotland) Act, 1895...	58 & 59 Vict. c. 36.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Carriage of Goods by Sea Act, 1924	14 & 15 Geo. 5. c. 22.
Carriage by Air Act, 1932	22 & 23 Geo. 5. c. 36.
Atomic Energy Act, 1946	9 & 10 Geo. 6. c. 80.
Rivers (Prevention of Pollution) (Scotland) Act, 1951	14 & 15 Geo. 6. c. 66.
Atomic Energy Authority Act, 1954	2 & 3 Eliz. 2. c. 32.
Administration of Justice Act, 1956	4 & 5 Eliz. 2. c. 46.